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File No.: EXP202202662

RESOLUTION FOR ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On January 18, 2022, a complaint was filed with the Spanish Agency for Data Protection against FLECA IGLESIAS ARTESANS, S.L. (hereinafter, the complained party).

The reasons for the complaint are as follows:

The complainant states that on December 17, 2021, and January 3, 2022, he received fines for parking a vehicle and also received communication from the Autonomous Body for Economic Management and Collection of the City Council of Salamanca (OAGER) for the collection of the tax on the same vehicle, with license plate ***LICENSE_PLATE.1.

He indicates that he worked during the summer period (from August 2 to September 7, 2021) as a delivery person at the bakery of the complained party, located in Barcelona, driving several vans, including a Renault Kangoo with license plate ***LICENSE_PLATE.1, whose image is attached. He states that he provided his data (ID, driver's license, and health card) to the owner of the bakery to include him in the vehicle insurance and for the formalization of his employment contract, which ultimately did not occur.

The complainant, suspecting that said commercial vehicle had been registered in his name, contacted the City Council of Salamanca, where he was informed that said vehicle was registered in his name from August 26 to December 21, 2021, which constitutes processing of his data without his consent. On January 7, 2022, he appeared at the facilities of the National Police Station El Coto in Gijón, where he reported the facts exposed regarding identity theft.

Relevant documentation provided by the complainant:

He provides a copy of the notifications from the City Council of Barcelona for fines dated November 8 and December 2, 2021.

He provides a copy of the files of the changes of ownership of the vehicle with license plate ***LICENSE_PLATE.1, the first as the buyer of the vehicle, dated August 26, 2021 (his identifying data and ID are recorded), and the second as the seller dated December 21, 2021 (his identifying data and ID are also recorded).

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SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the period of availability, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on March 19, 2022, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, with the procedure being considered completed in accordance with the provisions of Article 41.5 of the LPACAP, a copy was sent by postal mail for informational purposes, which was duly notified on March 18, 2022. In this notification, he was reminded of his obligation to interact electronically with the Administration, and he was informed of the means of access to such notifications, reiterating that, henceforth, he would be notified exclusively by electronic means.

No response has been received to this transfer letter.

THIRD: On April 18, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

- The complainant provides a copy of the file for the change of ownership of the vehicle with license plate ***LICENSE_PLATE.1, dated August 26, 2021, in which his personal data as the acquirer (name, ID, date of birth, and address) are recorded. The seller and owner of the vehicle is HIDRUS CONSULTORIA INTEGRAL DE INGENIERÍA SISTEMAS Y SERVICIOS S.L., and the representative is A.A.A. (Manager). He provides a mandate of said representation in which the complainant is recorded as the mandator and contains a handwritten signature of the mandator. The file contains, in addition to the vehicle documentation, a photocopy of the complainant's ID.

- He also provides a copy of the file for the change of ownership of the vehicle with license plate ***LICENSE_PLATE.1, dated December 21, 2021, in which the personal data of the complainant as the transferor are recorded. The acquirer is recorded as B.B.B. and the representative as A.A.A. (Manager). He provides a mandate of

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said representation in which the claimant is listed as the principal and contains a handwritten signature of the principal. It provides a copy of the purchase-sale contract without a date, which includes a handwritten signature of the seller and a handwritten signature of the buyer.

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FLECA IGLESIAS ARTESANS, S.L. has been requested by the data inspection on three occasions to provide information and documentation regarding the reported facts. The request was made via electronic notification dated July 18, 2022, which has expired, and by postal notification, dated August 10 and 31, 2022, which were returned marked as "unknown" in the first case and "absent delivery" in the second.

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On September 30, 2022, the data inspection requested the claimant to provide "A copy, if applicable, of the judgment issued by the Investigating Court in the criminal proceedings that arose from the complaint filed in January 2022 at the Police Station of El Coto de Gijón, as expressed in their complaint submitted to this Agency." The notification was delivered to the recipient on October 7, 2022, and no response has been received.

The owner of the vehicle, HIDRUS CONSULTORIA INTEGRAL DE INGENIERIA SISTEMAS Y SERVICIOS S.L., has been requested, whose representative states the following:

The company they represent commissioned the sale of its Renault Kangoo vehicle with license plate ***MATRÍCULA.1 to an employee of a group company (SISTEMAS Y MONTAJES JVG, S.L.), named C.C.C., who ended his services on September 1, 2021, due to voluntary resignation. A copy of the resignation letter and the settlement is provided.

This worker was responsible for all the procedures and management and found a buyer, as he communicated to them, who was Mr. D.D.D., an employee of the bakery FLECA IGLESIAS ARTESANS, S.L., with whom he had previously made contact.

The company they represent has had no direct relationship with the management ***GESTORÍA.1 and has not signed any document of commission for the change of ownership of the vehicle nor has it made any payment for that unprocessed management nor commissioned by the company.

The manager A.A.A. has been requested, who states the following:

C.C.C. delivered to their Management on August 26, 2021, the necessary documentation for the

transfer procedure of the Renault Kangoo vehicle with license plate ***MATRÍCULA.1. He requests it as an employee of the selling company, HIDRUS CONSULTORÍA INTEGRAL DE INGENIERÍA SISTEMAS Y SERVICIOS SL, to transfer the vehicle to the buyer, D.D.D. A copy of the file is provided. C.C.C. delivered to their Management on December 21, 2022, the necessary documentation to carry out for the second time the transfer procedure of the Renault Kangoo vehicle with license plate ***MATRÍCULA.1. This time the transferor is D.D.D. and the acquirer is B.B.B. He makes the request due to the friendship he maintains with the administrator of the company FLECA IGLESIAS ARTESANS, S.L., where both Mr. D.D.D. and Mr. B.B.B. are employees, according to his statement. A copy of the file is provided.

B.B.B. has been requested for information and documentation regarding the reported facts via postal notification, which was delivered by the Postal Service on December 16, 2022, without a response to the request. The request for information has been reiterated on January 16, 2023, with the notification in progress.

C.C.C. has been requested for information and documentation regarding the reported facts via postal notification, which has been returned by the Postal Service noting "Absent delivery" as the reason for the return, after two delivery attempts to the recipient on January 17 and 18, 2023.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

II

Principles relating to processing

Letter b) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

b) collected for specified, explicit, and legitimate purposes, and not further processed in a manner that is incompatible with those purposes; in accordance with Article 89, paragraph 1, further processing of personal data for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes shall not be considered incompatible with the initial purposes ('purpose limitation');"

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III

Legality of Processing

For the processing to be carried out lawfully, the provisions of Article 6.1 of the GDPR must be met, which states:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation of pre-contractual measures at the request of the data subject;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

IV

Conclusion

The complaint indicates that the claimant worked for a short time at the company of the respondent, during which time they provided their personal data (ID card, driver's license, and health card) to the owner of the entity to formalize the employment contract. They believe that their data was used for the purpose of registering a vehicle in their name and transferring it to a third party a few months later; providing supporting documentation for those transfers.

Following preliminary investigative actions, it has been confirmed that the owner of the vehicle subject to the complaint (HIDRUS CONSULTORIA INTEGRAL DE INGENIERIA SISTEMAS Y SERVICIOS S.L.) commissioned the sale of their vehicle to an employee of a company in the group, named C.C.C., who ended their services on September 1, 2021, due to voluntary resignation. This employee handled all the procedures and management and found a buyer, whom they communicated was Mr. D.D.D., an employee of the bakery FLECA IGLESIAS ARTESANS, S.L. with whom they had previously been in contact.

The manager who carried out the two changes of ownership of the vehicle (from Hidrus to the claimant and from the claimant to the final buyer) stated that C.C.C. provided them at their office with the necessary documentation for the vehicle transfer procedure. They made the request, as an employee of the selling company, HIDRUS, to transfer the vehicle to the buyer, D.D.D.

Also, C.C.C. provided them at their office, on December 21, 2022, with the necessary documentation to carry out the vehicle transfer procedure for the second time. This time, the transferor was D.D.D. and the acquirer was B.B.B. They made the request due to the friendship they maintain with the administrator of the company FLECA IGLESIAS ARTESANS, S.L.

Requests have been made to the involved parties, but either they have not received them or have not responded.

In the case subject to the complaint, the data processing has been lawful, as the signed authorizations for the purchases and sales of the vehicle in question are on record.

Regarding the possibility that the respondent may have forged the signatures of the claimant, they were asked about the outcome of the complaint filed regarding these facts, and despite having received the request for information, no response was received.

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

Thus, in accordance with the provisions indicated, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to FLECA IGLESIAS ARTESANS, S.L., and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided for in Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative

Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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